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CASE #	CASE NAME	HEARING NAME
CVRI2304403	KANDILIAN vs BMW NORTH AMERICA, LLC	MOTION TO DISQUALIFY CLARK HILL LLP AS COUNSEL FOR DEFENDANT

Tentative Ruling:

DENY the Motion without prejudice. SUSTAIN Plaintiff's objection to the unpublished opinion from the Los Angeles County Superior Court relied upon by Defense counsel. SUSTAIN Defendant's evidentiary objections to Plaintiff's Reply.

California Rules of Professional Conduct Rule 4.2 provides:

- (a) In representing a client, a lawyer shall not communicate directly or indirectly about the subject of the representation with a person the lawyer knows to be represented by another lawyer in the matter, unless the lawyer has the consent of the other lawyer.

The evidence here shows that attorney Carrie Shumake was never employed by Clark Hill ("CH") such that an attorney-client relationship existed between CH and Plaintiff. Shumake's new employment was contingent on Shumake obtaining waivers from the current clients of American Lemon Law Group, LLC. ("ALLG"). (Tracy Decl., Exh.1, Para.2.) CH Assistant General Counsel Jacqueline Roe confirms that Shumake's job offer was rescinded because Shumake was unable to obtain waivers from her former ALLG clients and that "Shumake was never employed, on staff, or associated as counsel" with CH. (Roe Decl., Paras.5-6.) Because Shumake was never a CH employee, it cannot be said that CH had an attorney-client relationship with Plaintiff such that CH would utilize information obtained from Shumake against Plaintiff. By the plain language of Rule 4.2(a), CH was not "communicating directly or indirectly about the subject of the representation with a person the lawyer knows to be represented by another lawyer."

Moreover, the evidence does not support the existence of an agency between CH and Shumake. Roe's email to Shumake on February 2, 2026, states, "I want to be clear that I can't help guide you on how to obtain waivers. I'm internal counsel for Clark Hill, and I can't provide legal advice to lateral candidates. You may wish to consider obtaining your own legal counsel." (Roe Decl., Exh.A.) This email shows that there was no consent by CH for Shumake to act on CH's behalf and subject to CH's control. "Agency is the relationship which results from the manifestation of consent by one person to another that the other shall act on his behalf and subject to his control, and consent by the other to so act." (*Gordon v. ARC Manufacturing, Inc.* (2019) 43 Cal.App.5th 705, 718.)